

Title Curative Checklist

Common defects and the instrument that cures them

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Most title defects have a standard cure. The trick is matching the right instrument to the defect, and reaching for the least invasive one that actually fixes it.

Defect	Cure	Note
Owner died, no probate in the county	Affidavit of heirship, or ancillary probate / determination of heirship	An affidavit of heirship establishes heirs through a disinterested witness; some chains need a court determination. Match the state's rules (see the intestate succession references).
Gap in the chain of title	Corrective deed, quitclaim from the missing link, or quiet title	Fill the gap with a conveyance from the party who held the interest, or quiet title if that party cannot be found.
Name discrepancy or misspelling	Affidavit of identity (one and the same)	Ties two versions of a name to the same person, for example "J. Smith" and "John A. Smith."
Wrong or ambiguous legal description	Correction deed	Re-conveys with the right description, signed by the original grantor.
Outstanding or unreleased lease or mortgage	Release or partial release	Get a recorded release; for an expired lease, a release or an affidavit of non-production.
Missing signature, acknowledgment, or spousal joinder	Re-execution, correction, or ratification	Depends on the defect. A missing spouse's signature on homestead usually needs a ratification.
Conflicting or overlapping interests	Stipulation of interest and cross-conveyance	The owners agree on and cross-convey to fix their fractions, common after a Duhig or double-conveyance problem.
Unknown or unlocatable owner	Quiet title action	A suit to establish title against unknown claimants. Sometimes the only cure.
Is a lease still held by production?	Affidavit of production / non-production	Establishes whether a lease is still alive, so you know whether to treat it as a burden.
Interest tied to a pooling or unit order	Pull and read the order	Confirm the tract and owner were included and how they were treated (see the pooling references).

Working the cure

Topic	Note
Least invasive first	Reach for an affidavit or release before a lawsuit. Quiet title is the last resort, not the first.
Match the cure to the state	Heirship, homestead, and marital rules vary. Use the right state's requirements.
Record everything	A cure only helps if it is recorded in the chain. File it, then note it in your runsheet.
Do not paper over a real problem	A correction or affidavit fixes a slip, not a genuine dispute over ownership. When interests truly conflict, get counsel.

This reference is prepared for use by landmen and title professionals as a working field tool. It is not legal advice and does not substitute for the advice of qualified oil and gas counsel. The law and the exact language of each instrument control, and both turn on the facts of the chain of title. Confirm any conclusion against the instrument and the current law, and refer complex or disputed matters to a licensed attorney in the state involved.